

underlying the case. Plaintiff alleges he was originally ignorant of their identities and connection to the wrongdoing, but subsequently discovered through public records that Guillermo and Rafael Martinez held officer positions in Arias Construction during the operative period, with Guillermo serving as CEO and Rafael as Secretary, and that both were associated with Arias Construction's and SRGR's CSLB contractor licenses. Plaintiff also argues that SRGR is a mere continuation of Arias Construction, formed at the same address by the same officers shortly after the Martinez Defendants were served with the FAC, and that the subsequent dissolution of Arias Construction without notice to creditors was an attempt to evade existing liability.

Plaintiff additionally objects that the demurrer improperly relies on factual assertions that do not appear on the face of the complaint, including claims that Plaintiff never met or interacted with Guillermo or Rafael, that they never entered the subject properties, and that no facts connecting them to the alleged misconduct could ever be pleaded. none of which are proper grounds for demurrer. Finally, Plaintiff asserts that the Martinez Defendants' post-complaint conduct, including incorporating SRGR, allowing Arias Construction to default, and dissolving it while litigation remained pending, independently supports amendment of the complaint.

The Doe amendment procedure allows a plaintiff to bring in a previously unknown defendant, but it does not relieve him of the obligation to plead facts sufficient to state a cause of action against that defendant especially where that issue is raised by demurrer. Therefore, Defendants' demurrer is sustained with leave to amend for Plaintiff to allege facts to support his legal theories against them.

Disposition

Defendants' demurrer is **SUSTAINED WITH LEAVE TO AMEND**. Defendants shall prepare the order and serve and file notice of entry of order. Plaintiff has 15 days from notice of entry of order in which to amend.

11. 9:00 AM CASE NUMBER: C25-00975
CASE NAME: WC PROPERTIES (EDENS), LLC, VS. PET PROS LLC (WA),
***HEARING ON MOTION IN RE: SET ASIDE DEFAULT**
FILED BY: PET PROS LLC (WA),
TENTATIVE RULING:

Defendant Pet Pros LLC (WA) ("Pet Pros") filed a Motion to Set Aside Default on November 21, 2025 (the "Motion to Set Aside Default"). The Motion to Set Aside Default was set for hearing on April 13, 2026. The motion is unopposed. A Notice of Non-Opposition was filed on April 3, 2026.

Background

Plaintiff filed a Complaint on April 7, 2025. A default was entered against Pet Pros on May 29, 2025. No default judgment has been entered as yet.

Analysis

Under Code of Civil Procedure section 473(b), the Court may, in its discretion, relieve a party from a default judgment resulting from "his or her mistake, inadvertence, surprise, or excusable neglect." Code Civ. Proc., § 473(b); *Rivercourt Co. Ltd. v. Dyna-Tel, Inc.* (1996) 41 Cal.App.4th 1477, 1480

("Rivercourt"). A motion seeking relief under section 473 is addressed to the sound discretion of the trial court. *Rivercourt, supra*, 41 Cal.App.4th at 1480. Neither mistake, inadvertence, nor neglect will warrant relief unless upon consideration of all of the evidence it is found to be excusable. *Conway v. Municipal Court* (1980) 107 Cal.App.3d 1009, 1017. The party seeking relief under section 473(b) bears the burden of establishing that the mistake, inadvertence, surprise or neglect was excusable. *Id.*

Pet Pros' management indicates that although its agent for service of process was served, the business not receive actual notice of the Summons or Complaint at that time and that its management did not learn about the service until it received the papers in June 2025 from the CT Corporation, after the default had already been entered. See Declaration of Frank Mahony filed on November 21, 2025, ¶15 *et seq.*

Disposition

The Court further finds and orders as follows:

1. The Motion to Set Aside Default is GRANTED.
2. Pet Pros shall file and serve a responsive pleading within ten (10) days.
3. The Court shall issue the order after hearing.

12. 9:00 AM CASE NUMBER: C25-01312

CASE NAME: YANHUA XU VS. CHIACHIA HSU

***HEARING ON MOTION IN RE: EXPUNGE LIS PENDENS AND REQUEST FOR ATTORNEY'S FEES AND COSTS**

FILED BY:

TENTATIVE RULING:

Defendants Chia Chia Hsu, Yaobin Li (collectively, the "Defendants") filed a Motion to Expunge Lis Pendens on November 12, 2025 ("Motion to Expunge Lis Pendens"). The Motion to Expunge Lis Pendens was set for hearing on March 30, 2026. Thereafter, the Court, *sua sponte*, continued this matter to April 13, 2026. Notice was duly given.

Background

On May 8, 2025, the Complaint was filed herein by plaintiff Yanhua Xu. There are two named individual Defendants, Chia Chia Hsu, Yaobin Li.

The initial Complaint alleges that defendant Chia Chia Hsu ("Defendant Hsu") claims a 50% ownership interest in the real property located at 4800 Bissell Avenue in Richmond, California (the "Subject Property"). The Complaint alleges that defendant Yaobin Li claims the "remaining" 50% ownership interest in the Subject Property. Plaintiff alleges that she transferred a \$180,000 contribution to the \$1,615,000 purchase price of the Subject Property in 2022. She further alleges that these funds "were applied toward the down payment used to acquire [Defendant Hsu's] 50% recorded interest in the Property." However, "Plaintiff was not listed on title or the grant deed at the time of purchase." Among other claims, plaintiff seeks to "quiet title in her favor for a proportional interest in the Property consistent with her \$180,000 contribution."

A verified First Amended Complaint was filed on October 25, 2025. The First Amended Complaint contains similar allegations, and asserts that the "ownership interests are as follows Plaintiff –